Citizenship

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Introduction

✓ **Citizenship** signifies the relationship between a person and the state, where the individual owes allegiance and is entitled to protection.

✓ Under the **Union List** in the Constitution, meaning it falls under the jurisdiction of the **Parliament**.

✓ The term "citizen" is not explicitly defined in the Constitution, but it is implied through various provisions.

✓ **Part 2** of the Constitution (Articles 5 to 11) specifies the conditions for acquiring citizenship, including birth, descent, registration, and naturalization.

✓ **Single Citizenship**

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Director,

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Constitutional Provisions

Article 5	Person who had his domicile in India
Article 6	• Person who migrated to India from Pakistan • He / His parents / His grandparents born in Undivided India • Migrated before July 19, 1948 – Ordinary resident of India Migrated after July 19, 1948 – Resident in India for 6 months
Article 7	• Person who migrated to Pakistan from India after March 1, 1947 • Later returned to India for resettlement Reside in India for 6 months before application
Article 8	• Person who, or any of whose parents / grandparents born in Undivided India • But residing outside India Overseas Indians
Article 9	No person shall be Indian citizen if voluntarily acquires foreign citizenship
Article 10	Person who is citizen of India continues to be such citizen, subject to provisions of any law made by Parliament
Article 11	• Parliament has the power to **make any provision** regarding: • **Acquisition** • **Termination** **And other matters related to citizenship**

Citizenship Act, 1955

- Enacted to provide details on how citizenship can be **acquired** and **lost** in India
  - Citizenship by **birth, descent, registration, naturalization**, and **incorporation of territory**

This act has been revised **time** to time.

Year	Key Amendment
1957	Citizenship (Amendment) Act
1960	Repealing and Amending Act
1985	Introduced provisions related to the **Assam Accord**
1986	Made citizenship by birth more restrictive
1992	Further refined citizenship by descent
2003	Introduced the concept of **Overseas Citizen of India (OCI)**; also repealed **Commonwealth Citizenship**
2005	Extended benefits of OCI card holders
2015	Merged **PIO (Person of Indian Origin)** with **OCI**
2019	Passed the **Citizenship (Amendment) Act, 2019 (CAA)** — provides citizenship to persecuted minorities from Pakistan, Afghanistan, and Bangladesh (Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians) who entered India on or before 31 Dec 2014

Rights granted to Citizens of India:

1. **Right against Discrimination (Article 15)**
2. **Equal Opportunity (Article 16)**
3. **Freedom Rights (Article 19)**
4. **Cultural and Educational Rights (Articles 29 & 30)**
5. **Political Rights**

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Acquisition of Citizenship in India (Five Methods)

1. By Birth

Born in India between 26 Jan 1950 – 1 July 1987:
→ Citizen irrespective of parents' nationality.

Born between 1 July 1987 – 3 Dec 2004:
→ At least one parent must be an Indian citizen.

Born on or after 3 Dec 2004:
→ Both parents must be Indian citizens, or
→ One parent is a citizen and the other not an illegal migrant.

2. By Descent

Born outside India (26 Jan 1950 – 10 Dec 1992):
→ Father was an Indian citizen at the time of birth.

Born on/after 10 Dec 1992:
→ Either parent an Indian citizen.

From 3 Dec 2004:
→ Birth must be registered at an Indian consulate within 1 year.
→ Minor must not hold another country's passport.

3.By Registration (Application to Central Govt.)

i. PIO residing in India for 7 years.
ii. PIO residing abroad (outside undivided India).
iii. Spouse of Indian citizen, resident in India for 7 years.
iv. Minor child of Indian citizen.
v. Person of full age with Indian parent(s), resident for 12 months.
vi. OCI cardholder for 5 years and resident for 12 months.

4.By Naturalisation

Conditions:

Not born in India (self or parents).

Renounce other citizenship.

Resided in India for 11 years (last 12 months continuous).

Good character, knowledge of a Schedule VIII language.

5.By Incorporation of Territory

If a foreign territory becomes part of India.

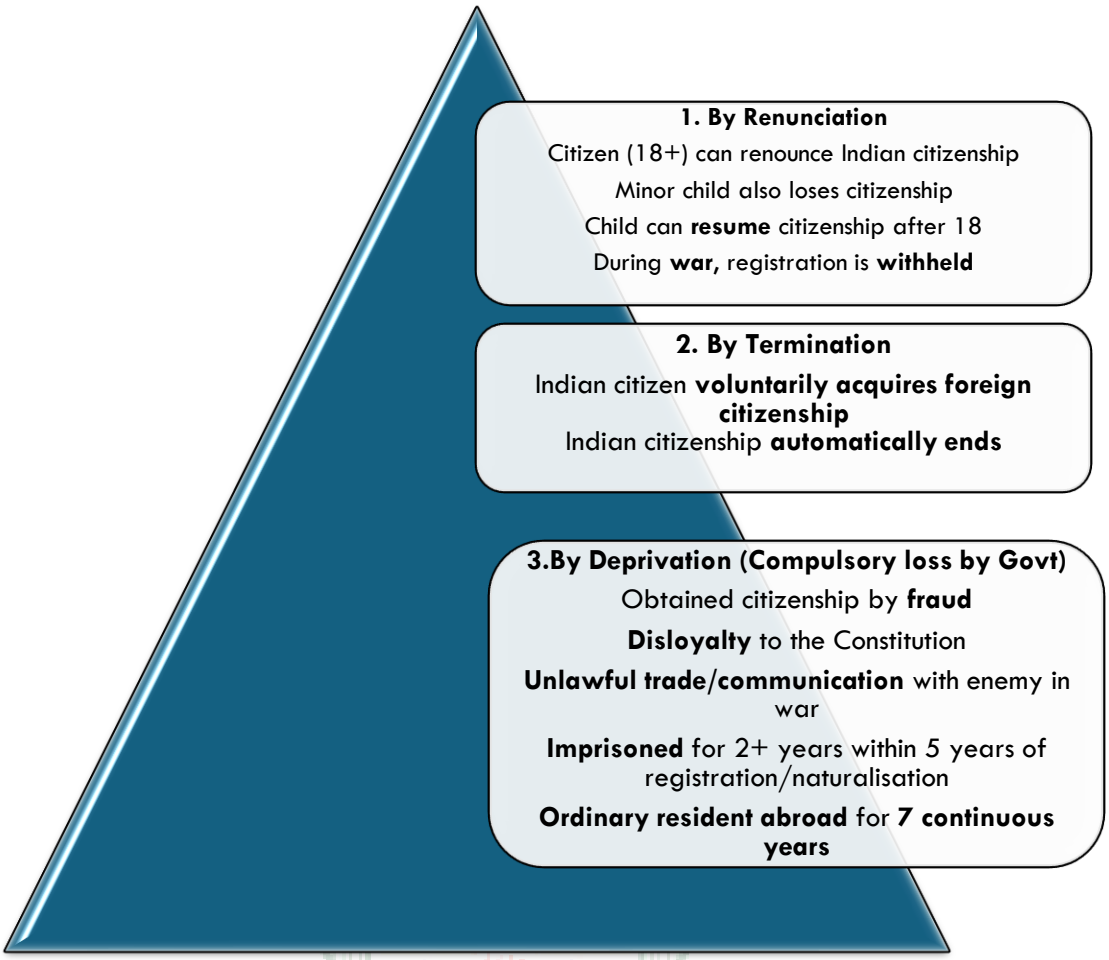
Govt. specifies who becomes citizens.

Example: Puducherry in 1962.

Special provisions under the Assam Accord

The Citizenship (Amendment) Act, of 1985, clarified citizenship for Indians who arrived in Assam before January 1, 1966, and have been residents there since then. Those found as foreigners after January 1, 1966, but before March 25, 1971, must register themselves.

Loss of Citizenship – 3 Ways



Overseas Citizenship of India (OCI):

OCI is a form of permanent residency for people of Indian origin and their spouses; it is *not* dual citizenship.

Privileges – Allows multiple visa-free entries, indefinite stay, work rights, and property ownership (excluding agricultural/plantation land).

Restrictions – OCI holders **cannot vote**, **hold public office**, or **own agricultural/plantation land** in India.

Renunciation – An OCI holder of full age can renounce their OCI status; minor children will also lose OCI status upon parent's renunciation.